

MEMORANDUM OF UNDERSTANDING

Between

**THE UNITED NATIONS CONVENTION TO COMBAT
DESERTIFICATION (UNCCD)**

And

THE SAHARA AND SAHEL OBSERVATORY (OSS)

REGARDING

**FRAMEWORK FOR COOPERATION BETWEEN THE PARTIES TO
HARNESS EARTH OBSERVATION DATA AND TECHNOLOGIES
FOR THE IMPLEMENTATION OF THE UNCCD**

This Memorandum of Understanding ("MoU") is entered into by the United Nations Convention to Combat Desertification (hereinafter referred to as "UNCCD") headquartered Platz der Vereinten Nationen 1, D53113 in Bonn, Germany, and the Sahara and Sahel Observatory (hereinafter "OSS"), an international Organization, established on 1992, in Paris, France, headquartered Boulevard du Leader Yasser Arafat, BP 31, 1080 in Tunis, Tunisia under a host-country agreement that Tunisia ratified by Law No. 2000-12 of 7 February 2000, and represented by its Executive Secretary, Nabil Ben Khadra. The UNCCD and OSS are hereinafter referred to individually as a "Party" and jointly referred to as the "Parties".

WHEREAS the United Nations Convention to Combat Desertification is the sole legally binding international agreement mandated to link environment and development to sustainable land management and mitigation effects of drought.

WHEREAS the UNCCD is interested in enhancing its activities in improving evidence-based policy-making and the capacity of UNCCD Parties to avoid, reduce, and reverse land degradation and increase resilience to drought;

WHEREAS OSS is committed to support African member countries sustainably manage and monitor their natural resources, especially in a particularly disadvantageous climate change context;

WHEREAS the Parties share similar missions and wish to cooperate in areas of mutual interest and to draw on their respective strengths and complementarities to enhance the effectiveness of their development efforts;

RECALLING the Memorandum of Understanding signed between UNCCD, OSS, the Permanent Interstate Committee for Drought Control in the Sahel (CILSS) and the Panafrican Agency for the Great Green Wall (PAGGW) in July 2022 which continues to form synergies on support to the Great Green Wall Initiative, including Transboundary Water Management;

RECALLING the successful collaboration of the Parties over the last years, in particular through an Agreement which was concluded on 25 June 2024;

NOW, THEREFORE, the Parties agree to collaborate as follows:

Article I

Purpose

1. The purpose of this MoU is to provide a framework for enhanced cooperation and to facilitate collaboration between the Parties, on a non-exclusive basis, for the implementation of activities aimed at harnessing Earth Observation data and technologies to accelerate progress toward Sustainable Development Goal (SDG) target 15.3 and the UNCCD Strategic Objectives, while strengthening evidence-based policymaking and enhancing the capacity of UNCCD Parties in Africa for land degradation and drought monitoring and reporting. By integrating advanced data analytics, digital innovation, and technical capacity building, the partnership will ensure that land and drought-related decisions are grounded in high-quality, timely, and relevant information.

2. This MOU will also serve as the framework for workstreams regarding the implementation of activities related to the Great Green Wall Initiative, including, but not limited to the implementation of a Transboundary Water Management Action plan for ground water and surface water across the Sahel region.

Article II

Scope of Cooperation

1. For the purpose and objectives of the MoU, the Parties agree to cooperate in the following areas of activity, with each Party operating subject to its respective mandates, regulates, rules, policies and procedures:

- i) Develop, apply and promote the use of Earth Observation and, where applicable, *in situ* data and technologies to support monitoring and reporting of progress towards achieving Sustainable Development Goal (SDG) target 15.3 and the UNCCD Strategic Objectives.
- ii) Develop and sustain the use of decision support systems, their data and services to inform policy development, planning, and implementation aimed at achieving land degradation neutrality (LDN) targets and strengthening resilience to drought.
- iii) Enhance capacity among UNCCD country Parties in Africa, including Small Island Developing States, to collect, manage, analyze, and utilize data effectively to monitor progress towards achieving SDG target 15.3 and the UNCCD Strategic Objectives. This includes fostering national ownership of data systems, strengthening reporting mechanisms, and ensuring equitable access to tools and technologies.
- iv) Boost regional and/or subregional cooperation to promote and facilitate the exchange of knowledge, best practices, and technologies in combating land degradation, and advancing drought monitoring, sustainable land and water management, and the conservation of natural resources.
- v) Enhance the effectiveness in implementing integrated restoration of transboundary lands through ecosystem protection and optimized water resources management across the wider Sahel Great Green region, with institutional and strategic support and momentum.
- vi) Strengthen synergies among the three Rio Conventions by advancing integrated approaches that simultaneously address land degradation, climate change, and biodiversity loss. This includes supporting coherent policy frameworks, integrated data systems, open data sharing according to the FAIR¹ principles, joint reporting, and fostering collaboration among their national focal points to maximize the effectiveness and sustainability of interventions across sectors.

2. The list of areas of cooperation is not exhaustive and can be supplemented by the Parties at any time by mutual agreement.

¹ Findable, Accessible, Interoperable, and Reusable

Article III

Implementation of the Memorandum of Understanding

1. This MoU is an expression of intent and is not legally binding. Accordingly, nothing in this MoU shall be construed as giving rise to legal or financial obligations upon either Party.
2. All activities envisaged in this MoU are subject to the availability of funding.
3. In order to implement the specific activities envisioned hereunder, the Parties shall conclude agreements which shall specify the costs or expenses relating to the activity and how they are to be borne by the Parties. The agreements shall also include a provision incorporating by reference the MoU, which is applicable to the agreements and the projects/programmes financed there from.
4. The Parties will maintain a close working relationship to achieve the objectives of this MoU. The Parties shall keep each other informed of and consult on relevant activities pertaining to their cooperation and shall, at such intervals as deemed appropriate, convene meetings to evaluate progress in the implementation of the MoU and to plan future activities.
5. Consultation and exchange of information and documents under this MoU will be without prejudice to arrangements, which may be required to safeguard the confidential and restricted character of certain information and documents. Such arrangements will survive the termination of this MoU and of any agreements signed by the Parties within the scope of this collaboration.
6. The Parties may invite each other to send observers to meetings or conferences convened by them or under their auspices in which, in the opinion of either Party, the other may have an interest. Invitations will be subject to the procedures applicable to such meetings or conferences.
7. To advance the implementation of this MoU, the Parties may jointly decide to develop an action or workplan to further elaborate on mutually agreed activities.

Article IV

Intellectual Property

1. The Parties will consult each other, as appropriate and if circumstances so require, on issues relating to intellectual property and rights thereto including the necessity of separate agreement(s) to regulate such issues and rights, while taking into account each Party's policy on intellectual property.

Article V

Data Protection

1. Both Parties will ensure an appropriate protection of personal data with due regard to the Personal Data Protection and Privacy Principles (www.unsceb.org/personal-data-protection-and-privacy-principles), and will not do, or cause or permit to be done, anything that may result in the other being in breach of the same. Any breach by a Party of data protection provisions in relation to the MoU will entitle the other Party to immediately

terminate the MoU with written notice to the other Party. The Parties acknowledge and agree that "personal data" is defined as information relating to an identified or identifiable natural person (data subject) that is processed in relation to activities undertaken under this MoU.

Article VI Use of Names and Emblem

1. Neither Party shall use the name, emblem or trademarks of the other Party, or any abbreviation thereof, without the express prior written approval of the other Party in each case.
2. The Parties shall consult with each other in advance concerning any press release or public statement relating to this MoU or its implementation.

Article VII Notices

1. Any notices required under this Agreement shall be in writing and shall be delivered personally or sent by registered or certified mail or official email account to the following addresses:

To the UNCCD

UNCCD
Xenya Scanlon
Chief Communications, External Relations and Partnerships
Address: Platz der Vereinten Nationen 1, D-53113 Bonn, Germany
Telephone: + 49 228 815 2801
Email: secretariat@unccd.int

With copies to:
Johns Muleso Kharika
Chief of Unit
Science, Technology, and Innovation Unit
Address: Platz der Vereinten Nationen 1, D-53113 Bonn, Germany
Email: jkharika@unccd.int

To the OSS

Sahara and Sahel Observatory (OSS)
Mr. Nabil BEN KHATRA
Executive Secretary
Address: Boulevard du Leader Yasser Arafat, BP 31, 1080 Tunis, Tunisie
Telephone: +216 71 206 633
Email: nabil.benkhatra@oss.org.tn - boc@oss.org.tn

With copies to:
Mustapha MIMOUNI
Director Department of Technology, Information and Remote Sensing

Email: mustapha.mimouni@oss.org.tn

2. Any such communication shall be deemed to have been given or made on the date such letter was hand-delivered, registered, or dispatched from the sender's official email account provided no delivery failure information is received by the sender, but any assumption of actual notice shall be subject to rebuttal to show that it has not actually been received.

Article VIII Representations

1. OSS declares and represents that it is a legally formed entity and has all the necessary powers, authority, and legal capacity to enter into this MoU and perform its obligations hereunder.
2. The Parties warrant that at the time of signing the MoU, no conflict of interest exists or is likely to arise in connection with the same.

Article IX Settlement of Disputes

1. The Parties shall use good faith efforts to settle amicably any dispute, controversy or claim arising out of this MoU. Where the Parties wish to seek such an amicable settlement through conciliation, the conciliation shall take place in accordance with the United Nations Commission on International Trade Law (UNCITRAL) Conciliation/Arbitration Rules then obtaining, or according to such other procedure as may be agreed between the Parties.

Article X Privileges and Immunities

1. Nothing contained in this MoU shall be construed as a waiver, express or implied, of any of the privileges and immunities of the United Nations including its subsidiary organs, enjoyed by UNCCD, including its secretariat and the GM, nor of the OSS.

Article XI Liability

1. The Parties shall not assign, transfer, pledge or make other disposition of the MoU or any part thereof or of any of their rights, claims or obligations under the MoU except with the prior written approval of the other Party. Any of the actions taken without such written approval shall not be valid.

Article XII Duration, Renewal, Amendment, Termination

2. This MoU will remain in force for three (3) years from its date of signature with the possibility of renewal for a subsequent further three-year period. It will renew automatically

for successive periods of three years unless either Party gives written notice to the other, not less than thirty days before the expiry of the then current term, of its intention not to renew the MoU. The Parties may conclude separate agreements arising out of, or in connection with the present MoU.

3. The MoU may be amended by written agreement of the Parties. Either Party may terminate the MoU upon giving two months' written notice to the other.

4. If either Party terminates the MoU, the UNCCD and the OSS will use their reasonable efforts to ensure that such termination does not prevent completion of any project or activity which is already underway but neither Party will be obliged to make additional financial contributions to secure this aim.

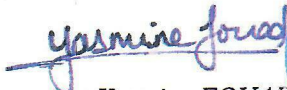
Article XIII Entry into Force

1. This MoU may be signed in counterparts, each of which shall be deemed an original and both of which duly executed shall constitute one entire document and shall enter into force and effect on the date ("Effective Date") in which it is duly signed by both Parties.

2. The Parties agree that the present Agreement shall be signed electronically and that the copies exchanged via email containing this Agreement shall have the same validity and enforceability as an original agreement.

IN WITNESS WHEREOF, the duly authorized representatives of the Parties affix their signatures below.

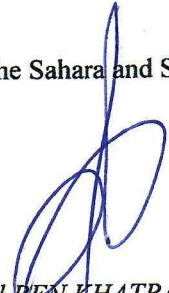
For the United Nations Convention to
Combat Desertification


Yasmine FOUAD
Executive Secretary

Bonn, Germany

Date: 2 March 2026

For the Sahara and Sahel Observatory


Nabil BEN KHATRA
Executive Secretary

Tunis, Tunisia

Date: 03/02/2026

